

suit. For most of the history of the common law, judges had only a very limited immunity. It cannot be argued that there has been a growing realization of the appropriateness of immunity, for most of the expansion of immunity has been accomplished without any persuasive analysis. Judicial methodology has included various devices, such as formal application of inapplicable rules and definitions, one-sided policy analysis, and generalization from limited evidence. What remains is an unpersuasive historical argument for a broad rule of immunity...."

Feinman and Cohen further observe at page 254 that:

"Analyzing law is to a considerable extent analyzing history. Determining the law to be applied in a particular case through the analysis of precedent is a historical process. In the instance of judicial liability, however, our historical review demonstrates that statements such as those in Stump and Bradley are unworthy of the overwhelming weight they are given because they are poor history at two levels: the courts have not understood correctly the primary sources, the prior cases, and the courts have evaluated inadequately the circumstances out of which the earlier cases arose." (footnotes omitted).

The authors of that article thereafter pursue the historical background which gave rise to the Bradley and Stump decisions, which became the bedrock law upon which present concepts of judicial immunity spring. The Hunzikers subscribe to the premises and the arguments extended by Feinman and Cohen in their very ably written and documented article, but believe that the additional following observations should and must be made to extend such premises. (Doc. 69, P. 1-6).

A. THE DEVELOPMENT OF THE ENGLISH LAW CAN BE DIVIDED INTO TWO DISTINCT PERIODS:

1066 TO 1688 - CONCEPT OF SOVEREIGNTY IN THE KING RULING BY ASSERTED DIVINE RIGHT. THE WORD OF THE KING AND HIS JUDGES WAS THE LAW

1688 - PRESENT - CONCEPT OF CONSTITUTIONAL MONARCHY WITH THE ULTIMATE SOVEREIGNTY IN THE PEOPLE AND THE KING AND THE COURTS SUBJECT TO ACTS OF PARLIAMENT, WHICH ARE THE LAW.